

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Filed on

-----X
MANUEL ACOSTA,

Index No.

Plaintiff,

Plaintiff designates Richmond
County as place of trial

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, DT3. SALVATOR MANNINO -
SHIELD No. 842/Tax ID No. 956877

The basis of venue is the place of
the occurrence of the tort.

Defendants.
-----X

Plaintiff resides at:
3 Young Street
Staten Island, NY 10302

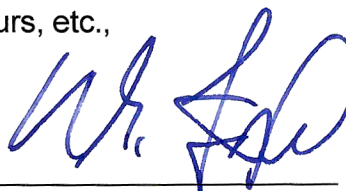
County of Richmond

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York
January 10, 2024

Yours, etc.,



Nussin S. Fogel, Esq.
LAW OFFICES OF NUSSINS. FOGEL, PLLC
Attorney for Plaintiff
299 Broadway - Suite 1818
New York, New York 10007
(212) 385-1122

Defendants' Addresses:

CITY OF NEW YORK

1 Centre Street

New York, NY 10007

NEW YORK POLICE DEPARTMENT

One Police Plaza

New York, NY 10007

DT3 Salvatore Mannino – Shield No 842/Tax ID No. 956877

c/o NEW YORK POLICE DEPARTMENT

Staten Island Robbery Squad

1 Edgewater Street

Staten Island, NY 10305

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND-----X
MANUEL ACOSTA,

Plaintiff,

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, DT3 SALVATOR MANNINO –
SHIELD No. 842/Tax ID No. 956877,Defendants.
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Plaintiff, MANUEL ACOSTA, for his Verified Complaint by his attorney, LAW OFFICES OF NUSSIN S. FOGEL, PLLC respectfully alleges as follows:

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a resident of the County of Richmond, City and State of New York.
2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized under the laws of the State of New York.
3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.
4. That, at all times hereinafter mentioned, defendant, DT3 SALVATOR MANNINO - Shield No. 842/Tax ID No. 956877, was and still is an employee of defendant, CITY OF NEW YORK.
5. That, at all times hereinafter mentioned, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.
6. That, at all times hereinafter mentioned, defendant, DT3 SALVATOR

MANNINO – Shield No. 842/Tax ID No. 956877, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

7. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 20th day of March, 2023, and within ninety (90) days after the occurrence set forth herein, plaintiff duly served a written Notice of Claim upon the defendants herein, pursuant to law, and was assigned claim number 2023PI009324; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claims remains unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one year and ninety days of the date of the occurrence; and a statutory hearing was held on November 16, 2023.

8. That, on or about January 13, 2023 at approximately 6:00 a.m. plaintiff herein was a lawfully near or adjacent to the premises located at 78 Richmond Terrace, Staten Island, NY.

9. That, on or about January 13, 2023 at approximately 6:00 a.m. at the aforesaid location plaintiff herein was unlawfully stopped, detained and injured by and through the negligent and improper use of holds, maneuvers, movements and techniques by defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877.

10. That, as a result of the aforesaid, plaintiff herein was thereafter transported to the Staten Island University Hospital, located at 475 Seaview Avenue, Staten Island, NY.

AS AND FOR A FIRST CAUSE OF ACTION

11. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “10” as if the same had been fully set forth herein.

12. That, at the aforesaid times and places, defendant, DT3 SALVATOR

MANNINO – Shield No. 842/Tax ID No. 956877, seriously and severely injured plaintiff herein.

13. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, by its agents, servants and employees were careless and negligent in permitting plaintiff herein to sustain serious and severe injuries and in failing to exercise the necessary amount of care and caution reasonable under the circumstances to prevent this foreseeable occurrence.

14. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, without any negligence on the part of plaintiff herein contributing thereto.

15. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, negligently disregarded their duty to protect plaintiff herein; negligently failed to prevent plaintiff herein from being seriously and severely injured; negligently failed to prevent its agents, servants and/or employees from using improper holds, maneuvers, movements and techniques against plaintiff herein; negligently took no action to stop the use of said improper holds, maneuvers, movements and techniques on plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein; negligently failed to provide adequate safety and security so as to protect plaintiff herein; negligently failed to provide adequate safeguards and protection so that plaintiff herein would not be subject to the use of said improper holds, maneuvers, movements and techniques without provocation or knowledge that plaintiff herein posed a danger or threat; and negligently failed to take all reasonable and necessary precautions to prevent the occurrence herein.

16. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE

DEPARTMENT, in their negligent performance and execution of its police, enforcement and investigational duties.

17. That, as a result of the aforesaid occurrence, plaintiff herein suffered serious, severe physical, personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS FOR A SECOND CAUSE OF ACTION

18. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "17" as if the same had been fully set forth herein.

19. That, at the aforesaid times and places, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, seriously and severely injured plaintiff herein.

20. That, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, carelessly, and negligently injured plaintiff herein and failed to exercise the necessary amount of care and caution which a reasonable person would have exercised to prevent this foreseeable occurrence.

21. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, without any negligence on the part of plaintiff herein contributing thereto.

22. That, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, disregarded his duty to protect plaintiff herein; negligently used improper holds, maneuvers, movements and techniques on plaintiff herein and by reason thereof inflicted serious injuries upon plaintiff herein; failed to prevent plaintiff herein from being subjected to the negligent use of improper holds, maneuvers, movements and techniques; negligently

took no action to stop the use of said improper holds, maneuvers, movements and techniques on plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein and negligently, carelessly and recklessly performed and executed their police, enforcement and investigational duties.

23. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, in the performance and execution of his police, enforcement and investigational duties.

24. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

25. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “24” as if the same had been fully set forth herein.

26. That, defendant, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, who caused plaintiff herein to incur serious and severe personal injuries.

27. That, defendant herein knew or should have known that, prior to, at and subsequent to the time when defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, engaged defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, that he was a person of incompetence and indifference; that he had previously used improper holds, maneuvers, movements and techniques on persons within his care

and custody and thereby inflicted serious injuries thereupon; had previously used excessive force against other individuals without just cause and provocation; and was known by general reputation to be incompetent and indifferent.

28. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employee, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, when this defendant police officer was employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

29. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in the hiring, supervision, training and retention of defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877.

30. That, by virtue of the aforesaid, plaintiff herein suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

31. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “30” as if the same had been fully set forth herein.

32. That, on or about January 13, 2023 at approximately 6:00 a.m. and continuing thereafter, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, attacked, assaulted, beat, battered and used excessive force on plaintiff herein, without cause or provocation.

33. That, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No.

956877, failed to protect plaintiff herein and intentionally threatened, attacked, assaulted, beat, battered, used excessive force and inflicted the aforesaid injuries plaintiff herein.

34. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

35. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "34" as if the same had been fully set forth herein.

36. That, at the aforementioned time and place, plaintiff herein was unlawfully and without just cause, assaulted, beat, battered, and subjected to excessive force by defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877.

37. That, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, used his position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

38. That, the improper and unlawful assault, beating, battery, and excessive force, of plaintiff herein by defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, violated plaintiff's civil rights as afforded under the Constitutions and laws of the United States and the State of New York.

39. That, the acts of defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, were done under the color of law and under the color of authority to be executed justly by defendant herein.

40. That, the failure of defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, in the exercise of his functions and his failure to enforce the laws of the United States and of the City and State of New York was carried out willfully, wantonly,

maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff herein.

41. That, the unlawful assault, beating, battery, and excessive use of force, of plaintiff herein by defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

42. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

43. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "42" as if the same had been fully set forth herein.

44. That, at the aforementioned time and place, plaintiff herein was improperly and unlawfully assaulted, beat, battered, and subjected to the excessive use of force by defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, without just cause or provocation.

45. That, defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No.

956877, used his position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

46. That, the improper and unlawful assault, beating, battery, and subjecting to the excessive use of force of plaintiff herein by defendant, DT3 SALVATOR MANNINO – Shield No. 842/Tax ID No. 956877, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

47. That, the acts of defendant herein were done under the color of law and under the color of authority to be executed justly by defendants herein.

48. That, the violations of plaintiff's constitutional rights were caused by the implementation of a custom, policy and/or official act of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT and/or the deliberate indifference to the assaulting, beating, battering, and subjecting to the excessive use of force, by their police officers of plaintiff herein and other individuals in similar circumstances as those of plaintiff herein.

49. That, the custom, policy and/or official act and/or deliberate indifference of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and their failure to enforce the laws of the United States and of the City and State of New York is evidenced by their reckless lack of cautious regard for the rights of citizens including plaintiff

herein and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants herein.

50. That such acts, customs and/or policies and/or deliberate indifference thereto were and are known to the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, including to the supervisors, decision and policy makers of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

51. That the knowledge of said acts, customs and/or policies and/or deliberate indifference thereto by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is demonstrated by the thousands of lawsuits filed, litigated, settled and/or tried to verdict by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, that allege the unlawful assaulting, beating, battery, and subjecting to the excessive use of force of individuals alleging incidents identical to those alleged herein as well as the continuous media coverage exposing and highlighting incidents identical to those alleged herein.

52. That, defendants, CITY OF NEW YORK and NEW YORK CITY DEPARTMENT OF CORRECTION, knew of said acts, customs and/or policies and/or were deliberately indifferent thereto and did nothing to prevent and/or created and harbored conditions to permit and allow its police officer, including the named defendant-officer herein, to implement and carry out such acts, customs and/or policies with impunity and without regard for the rights afforded to all citizens including plaintiff herein.

53. That, the failure of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in enforcing the laws of the State of New York and the rights afforded under the Constitution of the United States and its implementation of these known policies, customs and/or practices and/or deliberate indifference thereto led,

allowed or permitted the unlawful assault, beating, battery, and excessive use of force of plaintiff herein, thereby violating plaintiff's civil rights as well as the rights afforded under the Constitutions of the United States and the State of New York and defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, are thereby liable to plaintiff herein under 42 U.S.C. §1983 and the Constitution of the United States.

54. That, as a result of the aforesaid violations of plaintiff herein constitutional rights, plaintiff herein has been damaged in a sum of money which exceeds the monetary jurisdiction of all lower courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Third Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fifth Cause of Action and in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Sixth Cause of Action; together with interest, costs and disbursements herein.

Dated: New York, NY
January 10, 2024

Yours, etc.,

LAW OFFICES OF NUSSIN S. FOGEL, PLLC
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 1818
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

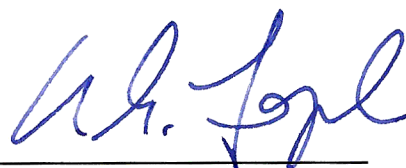
STATE OF NEW YORK)

COUNTY OF NEW YORK)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am A MEMBER OF THE LAW OFFICES OF NUSSIN S. FOGEL, PLLC, attorney of record for the plaintiff herein, in the within action; I have read the foregoing **Complaint** and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.

_____
NUSSIN S. FOGEL

I affirm that the foregoing statements are true, under the penalties of perjury

Dated: New York, New York
January 10, 2024